

CV-26-000992 ITRIA VENTURES LLC vs PROTECH PHONE REPAIR INC – Plaintiff's Motion for Summary Judgment or, in the Alternative, Summary Adjudication – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: For the reasons set forth below, Plaintiff's unopposed motion for summary judgment is GRANTED. Governing Law A plaintiff moving for summary judgment bears the initial burden of producing evidence sufficient to establish each element of the causes of action. (Code Civ. Proc., § 437c(p)(1); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) Once that burden is met, the burden shifts to the defendant to show that a triable issue of material fact exists. (Ibid.) Because summary judgment is a drastic remedy, the moving party's evidence is strictly construed and the opposing party's evidence is liberally construed, with all reasonable inferences drawn in favor of the opposing party. (Villacres v. ABM Industries, Inc. (2010) 189 Cal.App.4th 562, 575.) However, when a motion is unopposed, and the movant's evidence establishes each required element, summary judgment is appropriate. (See Code Civ. Proc., § 437c(c).) In addition to moving for summary judgment, "[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).) Merits of Summary Judgment Plaintiff has satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (p)(1), by presenting evidence establishing each element of its claims and demonstrating the absence of any triable issue of material fact. The undisputed evidence shows that: (1) Plaintiff and Defendant Protech Phone Repair, Inc. entered into a Receivables Sale Agreement on September 30, 2025 (SUF No. 1); (2) Plaintiff funded Defendant Protech in the amount of \$88,600 pursuant to that agreement (SUF No. 2); (3) Defendant Protech agreed to remit periodic payments of \$1,500 per week pursuant to the agreement (SUF No. 3); (4) Defendant Ajaypreet Singh guaranteed Protech's obligations under the agreement in the event of a material breach (SUF No. 4); (5) Defendants did not request a contractual reconciliation (SUF No. 5); (6) Defendants' payments began to fail on January 2, 2026 (SUF No. 6); and (7) the amount owed under the agreement is \$103,000 (SUF No. 7). Plaintiff further presents evidence that prejudgment interest through May 8, 2026 totals \$3,555.62 (SUF No. 8). These undisputed facts establish the existence of a contract, Plaintiff's performance, Defendants' breach, and resulting damages, thereby entitling Plaintiff to judgment on its cause of action for breach of contract. (SUF Nos. 1-7.) The same undisputed facts also establish Plaintiff's causes of action for open book account and account stated. (SUF Nos. 1-7.) Defendants filed an answer asserting affirmative defenses, but Plaintiff filed a Notice of Non-Opposition stating that no opposition to the motion was received by the statutory deadline, and no opposing evidence has been presented demonstrating the existence of a triable issue of material fact. Accordingly, Plaintiff has established that no triable issue of material fact exists and that Plaintiff is entitled to judgment as a matter of law. Code of Civil Procedure section 437c therefore requires that the motion to be granted. Judgment shall be entered in favor of Plaintiff ITRIA Ventures LLC and against Defendants Protech Phone Repair, Inc. and Ajaypreet Singh in the principal amount of \$103,000, together with prejudgment interest according to proof, costs of suit, and such attorney fees as may be recoverable pursuant to contract and that are properly established by noticed motion. (See Code Civ. Proc., § 1033.5; Civ. Code, § 1717.) Summary Adjudication In light of the Court's ruling granting summary judgment, Plaintiff's alternative request for summary adjudication is moot. Proposed Order and Proposed Judgment The Court was unable to locate a proposed order and proposed judgment submitted in conjunction with this motion. Consequently, the Court directs Plaintiff to submit within 10 court days a proposed order and a proposed judgment that are consistent with this ruling.

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For the reasons set forth below, Plaintiff's unopposed motion for summary judgment is GRANTED.

Governing Law

A plaintiff moving for summary judgment bears the initial burden of producing evidence sufficient to establish each element of the causes of action. (Code Civ. Proc., § 437c(p)(1); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Once that burden is met, the burden shifts to the defendant to show that a triable issue of material fact exists. (*Ibid.*)

Because summary judgment is a drastic remedy, the moving party's evidence is strictly construed and the opposing party's evidence is liberally construed, with all reasonable inferences drawn in favor of the opposing party. (*Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.) However, when a motion is unopposed, and the movant's evidence establishes each required element, summary judgment is appropriate. (See Code Civ. Proc., § 437c(c).)

In addition to moving for summary judgment, "[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).)

Merits of Summary Judgment

Plaintiff has satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (p)(1), by presenting evidence establishing each element of its claims and demonstrating the absence of any triable issue of material fact. The undisputed evidence shows that: (1) Plaintiff and Defendant Protech Phone Repair, Inc. entered into a Receivables Sale Agreement on September 30, 2025 (SUF No. 1); (2) Plaintiff funded Defendant Protech in the amount of \$88,600 pursuant to that agreement (SUF No. 2); (3) Defendant Protech agreed to remit periodic payments of \$1,500 per week pursuant to the agreement (SUF No. 3); (4) Defendant Ajaypreet Singh guaranteed Protech's obligations under the agreement in the event of a material breach (SUF No. 4); (5) Defendants did not request a contractual reconciliation (SUF No. 5); (6) Defendants' payments began to fail on January 2, 2026 (SUF No. 6); and (7) the amount owed under the agreement is \$103,000 (SUF No. 7). Plaintiff further presents evidence that prejudgment interest through May 8, 2026 totals \$3,555.62 (SUF No. 8).

These undisputed facts establish the existence of a contract, Plaintiff's performance, Defendants' breach, and resulting damages, thereby entitling Plaintiff to judgment on its cause of action for breach of contract. (SUF Nos. 1-7.)

The same undisputed facts also establish Plaintiff's causes of action for open book account and account stated. (SUF Nos. 1-7.)

Defendants filed an answer asserting affirmative defenses, but Plaintiff filed a Notice of Non-Opposition stating that no opposition to the motion was received by the statutory deadline, and no opposing evidence has been presented demonstrating the existence of a triable issue of material fact.

Accordingly, Plaintiff has established that no triable issue of material fact exists and that Plaintiff is entitled to judgment as a matter of law. Code of Civil Procedure section 437c therefore requires that the motion to be granted.

Judgment shall be entered in favor of Plaintiff ITRIA Ventures LLC and against Defendants Protech Phone Repair, Inc. and Ajaypreet Singh in the principal amount of \$103,000, together with prejudgment interest according to proof, costs of suit, and such attorney fees as may be recoverable pursuant to contract and that are properly established by noticed motion. (See Code Civ. Proc., § 1033.5; Civ. Code, § 1717.)

Summary Adjudication

In light of the Court's ruling granting summary judgment, Plaintiff's alternative request for summary adjudication is moot.

Proposed Order and Proposed Judgment

The Court was unable to locate a proposed order and proposed judgment submitted in conjunction with this motion. Consequently, the Court directs Plaintiff to submit within 10 court days a proposed order and a proposed judgment that are consistent with this ruling.